

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
MONTEREY PENINSULA UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

KAREN EHRHARDT,

A Permanent Certificated Employee,

Respondent.

OAH Case No. 2024050838

DECISION

A Commission on Professional Competence (Commission) heard this matter on October 7 through October 10, 2024, in Monterey, California. The Commission was comprised of Karen Schuett, Renee Golder, and Carl D. Corbin, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, who presided.

Courtney de Groof and Ricardo Rodriguez, Attorneys at Law, represented the Monterey Peninsula Unified School District (District).

Joseph Cisneros, Attorney at Law, represented Karen Ehrhardt (respondent), who was present at hearing.

Evidence was received. The record was held open for the parties to submit written closing arguments. The arguments were timely submitted and marked for

identification as follows: District's post-hearing argument is Exhibit 25, respondent's post-hearing argument is Exhibit G, and the District's reply argument is Exhibit 26.

Transcripts of the hearing were submitted and marked for identification as Exhibits 21 through 24.

The record closed and the matter was submitted for decision on December 6, 2024.

Protective Order

On July 24, 2024, pursuant to a stipulation of the parties, a Protective Order was issued to protect the privacy of students in the case, and to prevent the disclosure of confidential information. The exhibits, including transcripts, in this matter shall be subject to the Protective Order. Moreover, on the record, the ALJ issued an order directing that if transcripts of these proceedings are prepared, the names of minor students should be replaced with the first initial of their first and last names.

FACTUAL FINDINGS

Procedural History

1. Respondent Karen Ehrhardt is a permanent certificated employee of the District.

2. On April 9, 2024, PK Diffenbaugh, Ph.D., acting in his official capacity of Superintendent for the District, signed and filed with the District Board a Notice of Intent to Dismiss; Placement on Immediate Unpaid Suspension Pending Outcome of Disciplinary Proceedings; and Statement of Charges (Statement of Charges) against

respondent. The Statement of Charges includes nine attached documents, one of which is respondent's most recent summary evaluation from the 2021-2022 school year. The Statement of Charges specifies the following grounds for dismissal: (1) immoral conduct (Ed. Code, § 44932, subd. (a)(1));¹ (2) unprofessional conduct (*id.*, subd. (a)(2)); and (3) evident unfitness for service (*id.*, subd. (a)(6)).

3. The Statement of Charges generally sets forth six descriptions of conduct that respondent allegedly engaged in with District students, staff, and parents that establishes a basis for her dismissal: (1) on March 17, 2022, unsafely driving onto the school campus; (2) during the 2022-2023 school year yelling, insulting, and being verbally abusive and inappropriate with students in her classroom; (3) in April 2023, acting unprofessionally with a colleague regarding students;² (4) during the 2023-2024 school year complaining about students to other students; (5) during the 2023-2024 school year, including February 6, 2024, acting inappropriately with students in her classroom; and (6) on February 7, 2024, engaging in misconduct after being placed on paid administrative leave.

4. On April 24, 2024, respondent submitted a Request for Hearing and Notice of Defense to the Statement of Charges. This hearing followed.

Respondent's Background and Employment History

5. Respondent has a multiple subject teaching credential and has been teaching since 1998. She was hired by the District in July 2007 as an elementary school

¹ Statutory references are to the Education Code unless otherwise noted.

² The evidence established the incident occurred on May 19, 2023.

teacher. Respondent has worked at six schools within the District, and since 2018, she has been assigned to Ord Terrace Elementary School (Ord Terrace). Respondent taught fourth grade during the 2021-2022 and 2022-2023 school years, and she taught sixth grade for the 2023-2024 school year.

6. On April 11, 2017, the District issued respondent a 45-Day Notice of Unprofessional Conduct / 90-Day Notice of Unsatisfactory Performance based on her written and oral communications, conduct during staff meetings, conduct in the school parking lot and surrounding community, and conduct in the classroom.³

Witnesses

DISTRICT

7. The District called seven witnesses to testify at hearing: Joseph Sampson, Ord Terrace Principal; Carmen Youpa, retired District teacher and substitute teacher; David Sperry, District sixth grade teacher; Manuel Nuñez, Ph.D., Assistant Superintendent of Human Resources for the District; Itzani Rodriguez,⁴ District bilingual community liaison for Ord Terrace; and students P.V. and J.E.C.

³ In accordance with section 44944, subdivision (b)(2)(B), evidence of records regularly kept by the District concerning respondent may be introduced as evidence, but no decision relating to the dismissal or suspension of respondent shall be made based on charges or evidence of any nature relating to matters occurring more than four years before the filing of the Statement of Charges.

⁴ Rodriguez's last name was formerly Vera.

RESPONDENT

8. Respondent presented no witnesses other than herself to testify in this matter.

CREDIBILITY

9. The Commission evaluated the credibility of the witnesses pursuant to Evidence Code section 780, which provides:

Except as otherwise provided by statute, the court or jury may consider in determining the credibility of a witness any matter that has any tendency in reason to prove or disprove the truthfulness of his testimony at the hearing, including but not limited to any of the following: (a) [h]is demeanor while testifying and the manner in which he testifies[;] (b) [t]he character of his testimony[;] (c) [t]he extent of his capacity to perceive, to recollect, or to communicate any matter about which he testifies[;] (d) [t]he extent of his opportunity to perceive any matter about which he testifies[;] (e) [h]is character for honesty or veracity or their opposites[;] (f) [t]he existence or nonexistence of a bias, interest, or other motive[;] (g) [a] statement previously made by him that is consistent with his testimony at the hearing[;] (h) [a] statement made by him that is inconsistent with any part of his testimony at the hearing[;] (i) [t]he existence or nonexistence of any fact testified to by him[;] (j) [h]is attitude toward the action in which he testifies or

toward the giving of testimony[;] [and] (k) [h]is admission of untruthfulness.⁵

10. It is well-settled that the trier of fact may accept part of the testimony of a witness and reject another part even though the latter contradicts the part accepted. (*Stevens v. Parke, Davis & Co.* (1973) 9 Cal.3d 51, 67 [citations omitted].) The trier of fact may also "reject part of the testimony of a witness, though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected material." (*Id.*, at 67-68, quoting *Nevarov v. Caldwell* (1958) 161 Cal.App.2d 762, 777.) Moreover, the trier of fact may reject the testimony of a witness, even an expert, although not contradicted. (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 890.) The testimony of "one credible witness may constitute substantial evidence." (*Kearl v. Bd. of Medical Quality Assurance* (1986) 189 Cal.App.3d 1040, 1052.)

11. As discussed in more detail further below, the testimony of the District's witnesses was credible and compelling. There was no apparent bias against respondent in the testimonies from primary percipient witnesses Youpa, Sperry, Rodriguez, and student witnesses P.V. and J.E.C. In their testimonies, while they testified to issues of concern with respondent, four of these witnesses (excluding Rodriguez) also made some positive statements about respondent. These percipient witnesses had a good recall of the events relevant to this matter and their testimony was consistent with the evidence. The testimony of Sampson and Dr. Nuñez was

⁵ The masculine gender includes the feminine and neuter. (Evid. Code, § 9.)

delivered in a matter-of-fact manner consistent with telling the truth and consistent with their role as administrators for the District.

12. As discussed in more detail further below, the testimony of respondent was telling in that, with little exception: she denied engaging in any misconduct; she blamed Sampson and others for deliberately targeting her; she accused others, including student witnesses P.V. and J.E.C., of being dishonest; and she accepted little responsibility for her misconduct. Overall, respondent's testimony was generally not credible.

March 17, 2022, Driving Incident

13. Sampson has been principal of Ord Terrace since July 2013. During the 2021-2022 through 2023-2024 school years, Ord Terrace had approximately 450 to 400 students (student enrollment is declining) and approximately 70 staff.

14. On December 13, 2021, Sampson held a verbal conference with respondent due to his understanding that she was driving at Ord Terrace in a manner that caused parents to be concerned. During the conference, Sampson directed respondent to drive within the Ord Terrace school zone in a manner that is professional and follows relevant traffic law and to be on campus by 7:45 a.m. daily in accordance with the collective bargaining agreement between the teachers' union and the District. Sampson directed respondent to contact him if she was unable to be on campus by 7:45 a.m.

15. Around March 17, 2022, Sampson received a complaint from two parents that on that day, at approximately 7:55 a.m., respondent drove into the front staff parking lot and came very close to hitting a student who was crossing in front of the

parking lot entrance, by not yielding to pedestrian traffic and driving faster than the speed limit.

16. On April 4, 2022, Sampson, Dr. Nuñez, union president Nikki Williams, and respondent met regarding the March 17, 2022, parents' complaint. At the meeting, Sampson issued respondent a Conference Summary and Warning Letter, which referenced the December 13, 2021, verbal conference and the directives provided by Sampson to respondent during that conference. The Conference Summary and Warning Letter included additional directives for respondent: yield to all pedestrian traffic when driving within the school zone; be on campus by 7:45 a.m.; and if unable to arrive on time by 7:55 a.m. to escort her students to her classroom, she must call or text Sampson so her students could be supervised.

17. On an unspecified number of occasions during the 2020-2021 and 2021-2022 school years, respondent was late to arrive at Ord Terrace because she dropped off her two children at their school prior to driving to Ord Terrace. Respondent admitted sometimes speeding while off campus in order to try and make it to Ord Terrace on time. Respondent denied speeding or driving in an unsafe manner on campus on March 17, 2022. Respondent blamed the other drivers, pedestrians, and the dangerous design of the parking entrance and parking lot at the school.

18. The evidence established that during the 2021-2022 school year the District was aware there were safety and congestion concerns with the parking lot at Ord Terrace and the District subsequently took action to correct these issues.

ULTIMATE FACTUAL FINDING: MARCH 17, 2022, DRIVING INCIDENT

19. There is no direct evidence establishing respondent unsafely drove into the Ord Terrace parking lot on March 17, 2022, and there is insufficient evidence that

respondent's students were left unattended on that day. Furthermore, the Statement of Charges does not allege that during the 2022-2023 or 2023-2024 school years respondent engaged in any driving safety issues or arrived late at Ord Terrace

2022-2023 School Year

20. Sampson is involved with student discipline at Ord Terrace depending on the seriousness of a student's behavior. Teachers at Ord Terrace, including respondent, are trained in multi-tiered systems of support (MTSS), which is a framework that refers to the ways that students get their academic, behavioral, social, and emotional needs met. Teachers at Ord Terrace, including respondent, are also trained on at least an annual basis in positive behavior intervention supports (PBIS), which is a component of MTSS. PBIS includes various preventative research-based measures to address the behavioral needs of students. Respondent was on the Ord Terrace PBIS committee for approximately two years.

21. Sampson has been respondent's supervisor for six years. It is typical for Sampson to formally (as part of the teacher evaluation process) and informally observe teachers at Ord Terrace. Sampson formally (twice during an evaluation year) and informally, a few times a month, observed respondent providing student instruction.

22. During the 2022-2023 school year, Sampson informed respondent about the PBIS process for specific situations where she believed she needed support beyond the behavioral referral process. Sampson specifically reviewed the MTSS and PBIS information with respondent as he was aware she had expressed concerns about the behavior of two students in her class. This process included the completion of an office discipline referral form. There is a separate form for teachers to complete if they believe they do not have the resources to manage the internalizing or externalizing

behavior of students and would like the student referred to an MTSS meeting to discuss Tier Two and Tier Three supports for students.

23. During the 2022-2023 school year, respondent informally (she did not complete a form) asked Sampson for assistance regarding the behavior of two students. Sampson responded to respondent's request for assistance. One of the students qualified for special education services and, following assessments, was placed in a more restrictive setting through the Individualized Education Program (IEP) process pursuant to the Individuals with Disabilities Education Act (IDEA).

24. Sampson received his first complaint about respondent (within the relevant last four years) during the period of distance learning when teachers taught students while they were at home during the COVID-19 pandemic. There were a couple of complaints from staff about respondent's interactions collaborating with other colleagues and her demeanor, as well as some of her language, including profanity, that she used in conversations that occurred in formal professional learning community (PLC) meetings.

25. During the spring of the 2022-2023 school year, Sampson received reports of concern regarding respondent including: verbal reports from staff regarding the noise level in respondent's classroom; an email from a school psychologist related to something she observed in respondent's classroom; a February 9, 2023, text message from a teacher; and a February 8, 2023, email from Rodriguez.

26. The February 8, 2023, email from Rodriguez related to her concerns regarding statements respondent made to students while she was present in respondent's classroom, which is discussed in more detail further below (see Factual Findings 37-42).

27. Sampson received the February 9, 2023, text message from a teacher while he was out of town. Sampson called the teacher and discussed the teacher's concern regarding her observation of respondent's conduct with students.

28. Based on the concerning reports Sampson received regarding respondent's conduct, he initiated an investigation. Sampson contacted and consulted with Dr. Nuñez because there had been multiple concerns regarding respondent during the 2022-2023 school year and he wanted to make sure the investigation was completed fairly and correctly.

29. On February 14, 2023, Sampson interviewed 15 to 20 students from respondent's fourth grade classroom. Sampson took contemporaneous notes on a Google document as he was interviewing each student. Several students reported that respondent told another student to "shut up," and that respondent had discussed, loudly so the whole class could hear, private information about students including special education status and medical concerns. Some of the students reported that respondent used the term "trash" to refer to a student or to the student's behavior.

30. Sampson completed his investigation and shared the students interview statements with Dr. Nuñez. As result of Sampson's investigation, he concluded that respondent inappropriately verbally shared information to her class about a student having an IEP and about another student having "ADHD" (attention-deficit/hyperactivity disorder), and she told a student in her class to shut up.

31. At hearing, Sampson persuasively opined that private student information should not be shared with other students and there is no circumstance under which it is appropriate to tell a student to shut up. If respondent was frustrated with a student, instead of telling the student to shut up she should have used other

positive behavior intervention techniques. Sampson also concluded from his investigation that most of the students he interviewed knew there was something not right occurring in respondent's classroom, but the students had various perspectives on if it was respondent's fault or if it was the fault of other students that respondent was so frustrated.

32. On February 14, 2023, after Sampson shared the results of his students interviews with Dr. Nuñez, respondent was put on paid administrative leave pending the District's investigation into whether she had engaged in unprofessional conduct.

33. On April 5, 2023, Dr. Nuñez issued respondent a 45-Day/90-Day Notice of Unprofessional Conduct and Unsatisfactory Performance letter (Notice). The Notice cited six incidents as the basis for concluding that respondent had engaged in unprofessional conduct and unsatisfactory performance:

1. On March 17, 2022, you erratically drove into the school parking lot ten minutes after you should have been supervising your students. Your unsafe and negligent actions nearly resulted in grave personal injury to a student walking to school. You failed to drive your vehicle appropriately and created a dangerous situation for the school community. Further, your late arrival created a situation where your students were left unattended.

2. During the 2022-2023 school year, you were rude and verbally abusive to your students. You tell your students to "shut up" and at times mask your uncontrolled emotion by saying "shut the door."

3. During the 2022-2023 school year, you inappropriately yelled at your students and created an unsupportive learning environment, such that your students were uncomfortable and scared. You aggressively slam your hands on the desk, which frightens the young students.

4. During the 2022-2023 school year, you insulted a student. You called the student "trash." Your conduct and comments are embarrassing and disparaging to your students.

5. During the 2022-2023 school year, you told your student that his mother should send him to an adoption center or get a therapist. This was done in front of the students [sic] peers. Your comments strike to the core of the child's sense of belonging and self-image. Your comments are grossly deficient in sound judgment.

6. During the 2022-2023 school year, you told the class that one of your students has a mental health condition. Your comments violated the privacy rights of the student. You failed to be a role model and uphold your duty as an educator of this District. In addition, you wrongfully released confidential/ privileged information about your student.

The Notice described respondent's duty as a teacher to be a role model for students, and as an employee to act with ethical integrity and in compliance with

District policies. The Notice stated respondent's actions violated District Board Policy 4119.21, the Code of Ethics of the Education Profession, and eight standards contained in the California Standards for the Teaching Profession (CSTP). The Notice contained nine directives to respondent, including directing her to refrain from further engaging in conduct related to the six cited instances of misconduct, and to comply with the District Policy 4119.21 and the CSTP.

34. On approximately April 27, 2023, Dr. Nuñez met with respondent, her legal counsel, and Sampson for the purpose of reviewing the Notice. Dr. Nuñez testified the meeting did not go well as respondent was "very defensive, very agitated, [and] constantly interrupted me." Dr. Nuñez reviewed the directives in the Notice and ended the meeting. Dr. Nuñez characterized the meeting as a "very short meeting" whereas typically meetings of this nature last approximately 30 minutes as he prefers to review the entire document. During this meeting, without further evidence, respondent alleged that Sampson was "out to get her." It is undisputed that respondent was aware of the directives in the Notice and aware that she was required to comply with the directives. Respondent did not provide a written response to the Notice.

35. The parties agreed that respondent would return to work from paid administrative leave on May 19, 2023.

36. On May 19, 2023, respondent returned to work. As discussed further below (see Factual Findings 52-61), when respondent arrived in the parking lot, she had an interaction with Youpa in which respondent used profanity. Youpa reported the interaction to Sampson, Sampson contacted Dr. Nuñez, and Dr. Nuñez issued respondent a letter that day placing her back on paid administrative leave pending an

investigation into her behavior. Respondent did not return to Ord Terrace for the remainder of the 2022-2023 school year.

2022-2023 SCHOOL YEAR: VERBAL ABUSE TOWARDS STUDENTS

Rodriguez's Testimony

37. As set forth in Factual Finding 26, Rodriguez reported concerns about respondent's statements to students while Rodriguez was present in respondent's classroom. Rodriguez testified at hearing.

38. Rodriguez has been a bilingual community liaison at Ord Terrace since January 2023. Her role is to help and support teachers with student behavioral issues. If a teacher requests Rodriguez to speak to a student, she will go into the teacher's classroom, and either support the teacher by interacting with the student in the classroom or escorting the student out of the classroom to take a break.

39. In January or February 2023, while respondent was teaching, Rodriguez was called by respondent to assist with a student who was "being a distraction." When Rodriguez arrived at respondent's classroom, respondent made an inappropriate statement to and about a student that was very loud and heard by everyone in the classroom. Respondent stated that the student was not paying attention, and respondent did not want the student in her classroom.

40. On a second occasion in the same time period of January or February 2023, while respondent was teaching, Rodriguez was going to respondent's classroom to "pull" a student for a five-minute "check-in" to see how the student was doing. When Rodriguez entered respondent's classroom, respondent stopped her and stated, regarding a different student, that she did not want the student in her classroom.

Respondent asked Rodriguez to remove the student, stated the student was a distraction, and stated that he needed to “be in special day class” or something similar. Respondent’s statements regarding the second student were very loud and heard by everyone in the classroom.

41. Rodriguez was concerned about respondent making inappropriate statements about students that other students could hear, and she brought up the issue during a weekly MTSS Tier meeting that was comprised of her, Sampson, a school psychologist, and a therapist. Rodriguez further documented her concerns in her February 8, 2023, email to Sampson.

42. Rodriguez’s testimony was credible and persuasive.

Student P.V.’s Testimony

43. During the 2022-2023 school year, student P.V. (who is 11 years old) was enrolled in respondent’s fourth grade class and was one of the students that was interviewed by Sampson as set forth in Factual Finding 29. P.V. testified at hearing that in respondent’s classroom in front of her and other students, respondent:

- Would sometimes “slam her hand” on her desk and the desk of students when the class “got loud,” this felt “loud and scary” to P.V., and her other teachers did not slam their hands on desks;
- At least once, when a student was being loud, respondent told the student to “shut up,” and that P.V.’s other teachers did not tell students to shut up;
- At least once, when she was irritated because the class was being loud, respondent “got mad and yelled” at the class;

- Referred to a student as “special,” that the student “should go to special ed class,” and that P.V. believed this was a negative because “it’s not okay to call a kid special”;
- Stated to the same student (immediately above) that “he should be adopted”; and
- Referred to another student as having “ADHD.”

44. P.V. also testified that respondent never yelled at her, she liked respondent as a teacher, she thought respondent was funny, and respondent used a reward card system in the classroom.

45. P.V.’s testimony was credible, compelling, and persuasive.

Student J.E.C.’s Testimony

46. During the 2022-2023 school year, student J.E.C. (who is 11 years old) was enrolled in respondent’s fourth grade class and was one of the students that was interviewed by Sampson as set forth in Factual Finding 29. J.E.C. testified at hearing that in respondent’s classroom in front of her and other students, respondent:

- Yelled in her classroom “in the outdoors way,” which was louder than other teachers, when students in the classroom were loud;
- Used the phrase “shut the front door” instead of saying “shut up” when she wanted the students to be quiet, but on at least one occasion she did tell a student or students to “shut up”;
- Said one student had ADHD and, sometimes angrily, informed the class to not pay attention to the student because he had ADHD, and that made J.E.C.

feel “to not like say anything to her because I’m afraid she’s going to tell the whole class”; and

- Said another student was “the special boy” who “does not belong here, he’s supposed to be in special room” and that made J.E.C. uncomfortable because she “didn’t want to know it.”

47. J.E.C. also testified that one time when she was “putting her stuff away to go to recess, and then [respondent said] that I was playing with them before we went to recess so [respondent] took away my stuff and, like, yelled at me.” J.E.C. and other students missed respondent when she went on leave and at the request of the substitute teacher, Youpa, J.E.C. and other students wrote a welcome back card when respondent returned. Respondent “was kind and like patient with us learning, because I was having trouble multiplying,” used a reward card system in the classroom, but also stated “well, she was kind of mean.”

48. J.E.C.’s testimony was credible, compelling, and persuasive.

Respondent’s Testimony

49. Respondent testified at hearing regarding the allegations that during the 2022-2023 school year she was verbally abusive to students and that she shared with her students’ confidential information regarding other students. Respondent acknowledged that it would be unprofessional to tell students to shut up, that slamming her hands on a desk during class could intimidate students, and that a student’s special education status is confidential, and confidential student information should not be shared in front of other students. Respondent denied that she created an unsupportive learning environment for students; made students uncomfortable, scared, or embarrassed; or disparaged students.

Respondent denied calling a student “trash,” but she did admit that she was shocked by a statement made by a parent during a parent-teacher conference so during a staff PLC meeting with other fourth grade teachers, she stated, “if you drop two S bombs and an F bomb during a parent-teacher conference, you [referring to a student’s parent] might be white trash.” Respondent tried to justify making this statement as it was said “in confidence” during the PLC meeting. Respondent did not acknowledge that saying this comment about a student’s parent in a PLC meeting is unprofessional.

Respondent denied telling a student that the student’s parent should send the student to an adoption center or to obtain a therapist. Rather, respondent testified that she informed the student if he was having trouble with his parent he might want to talk with a therapist, after the student said in front of the whole class that his mother said she was going to send him to an adoption center.

Respondent denied ever telling her class that a student had a mental health condition. Respondent testified that during class a student was having some behavioral difficulties that she was trying to manage so she referenced an accommodation in the student’s “plan.” The student asked if she was referring to his “504 plan” [a plan to accommodate a student with disabilities pursuant to Section 504 of the Rehabilitation Act of 1973], and then the “smartest kid in class” blurted out that “it’s [having a Section 504 plan] when you have ADHD.” Respondent then tried to redirect the class from discussing Section 504 plans and ADHD.

50. Respondent’s testimony regarding the statements she made about students and to students generally lacked credibility.

Ultimate Factual Finding: 2022-2023 School Year Verbal Abuse Towards Students

51. The testimony of Rodriguez, P.V., and J.E.C. was more credible than that of respondent. The evidence established, as alleged in the Statement of Charges, during class instruction in the 2022-2023 school year, respondent: told a student to shut up, referred to a student's special education status and stated the student should be adopted, slammed her hand on a desk, yelled at the class in anger, referred to a student having ADHD, stated she did not want a student in her class and the student needed to be in a special day class [an educational placement for students pursuant to the IDEA], and stated on a different occasion that she did not want a student in her class. The evidence did not establish that respondent called a student "trash," but rather she referred to a student's parent as "white trash."

2022-2023 SCHOOL YEAR: UNPROFESSIONAL CONDUCT TOWARDS COLLEAGUE REGARDING STUDENTS

Youpa's Testimony

52. Youpa testified at hearing. Youpa worked as an elementary teacher at the third and fourth grade levels for the District from 2001 until 2019 when she retired. After retiring, Youpa has served as a substitute teacher for the District. Youpa worked with, interacted with, and observed respondent with students while Youpa was teaching at Ord Terrace and while she served as a substitute teacher. Youpa described her relationship with respondent as "colleagues."

53. Youpa was assigned as the long-term substitute for respondent's fourth grade classroom after respondent was placed on paid administrative leave in February 2023, as set forth in Factual Finding 32.

54. Sampson informed Youpa and the students in respondent's fourth grade class, that respondent would be returning on May 19, 2023.

55. On May 19, 2023, Youpa was scheduled to substitute for a fifth grade class at Ord Terrace. She arrived in her vehicle at the staff parking lot at 7:30 a.m., prior to the morning bell at 7:55 a.m., which is when students line up and teachers escort their students to their classroom.

56. When Youpa arrived on campus that day, she was asked by students if gifts could be placed in respondent's classroom for a surprise baby shower later that day for a teacher whose classroom was next door to respondent's classroom. This request made sense to Youpa as the two classrooms were adjacent, she agreed to the request, and the gifts were placed in respondent's classroom.

57. Youpa decided to wait in the staff parking lot for respondent to arrive in order to let her know that there were gifts being stored in respondent's classroom for the surprise baby shower. At approximately 7:45 to 7:50 a.m., respondent arrived in her vehicle at the staff parking lot. When Youpa greeted respondent and informed her about the gifts for the baby shower in her classroom, respondent stated, "I don't give a fuck [about the students]," and "the District wants me here, I don't want to fucking be here." Respondent continued making profanity-filled statements before leaving.

58. On hearing respondent's statements, Youpa was upset, her stomach "dropped," and she felt really sad for the kids. Youpa recalled that, as the substitute teacher, she had the students create notes to welcome respondent back to the

classroom. Over Youpa's professional career she had never heard another educational professional make this sort of statement regarding students. Youpa walked away from the parking lot to the school staff lounge upset and almost in tears trying "to keep it together." A teacher (who serves as the academic coach) saw that Youpa was upset, asked her what happened, Youpa relayed what occurred, and the teacher told her she needed to report the situation to Sampson. Youpa did not want to report the incident as she did not want to be a "tattletale." She did not believe the statements were appropriate even made to another adult, as the comments were not made behind closed doors, but out in the open in an area where students sometimes walk by, and parents sometimes drop off their children for school.

59. In Youpa's testimony at hearing, she confirmed what she heard respondent state was accurately reflected in the Statement of Charges, which alleged "[respondent] said 'fuck' several times and said [respondent] did not care or give an 'F...' about students." When Youpa was questioned regarding her observations of respondent's communication with students, Youpa stated that respondent has "a strong voice," "sometimes she would sound angry," "her voice projects well," and "sometimes she sounded a little aggressive but then sometimes she would be funny with the kids."

60. Youpa also testified that respondent's students were excited that respondent was returning (on May 19, 2023) because the students "wanted their teacher back."

61. Youpa's testimony was credible, compelling, and persuasive.

Respondent's Testimony

62. Respondent testified that she did use the word "fuck" in her conversation with Youpa in the staff parking lot on May 19, 2023, but she denied she did so regarding students as she was excited to see her students. Rather she used profanity after she was informed that baby shower gifts were being stored in her room for a specific teacher with whom she had a history of conflict. Respondent testified she was "triggered" and said, "I don't give a fuck about her baby shower, get it all out of my classroom now" and then she walked to her classroom.

63. Respondent's testimony regarding her conversation with Youpa lacked credibility.

Ultimate Factual Finding: 2022-2023 Unprofessional Conduct Towards Colleague Regarding Students

64. The testimony of Youpa was more credible than that of respondent. Furthermore, respondent admitted using profanity in an open area of the staff parking lot where parents and students could have been present. The evidence established, as alleged in the Statement of Charges, respondent used unprofessional language towards a colleague.

2023-2024 School Year

65. In May 2023, respondent requested a voluntary transfer from Ord Terrace to another District school for the 2023-2024 school year. Article 16 of the collective bargaining agreement between the District and its teachers' union addresses teacher reassignments and transfers. Dr. Nuñez facilitated, along with the District's Human Resources Director, the District's response to respondent's request. Respondent's

request was not granted. At hearing, Dr. Nuñez testified there are typically 10 to 12 voluntary transfer requests made by teachers each school year and typically only one or two are granted in accordance with Article 16. Dr. Nuñez did not recall the specific reason for the denial of respondent's request and respondent never asked him why her request was denied. There is no evidence that the District's denial of respondent's transfer request was inappropriate or retaliatory.

66. On July 27, 2023, when Ord Terrace was not in session, Dr. Nuñez, Sampson, Uriel Diaz (Ord Terrace Assistant Principal), and respondent met in an "reentry meeting" for the purpose of discussing respondent's return to Ord Terrace for the 2023-2024 school year. Dr. Nuñez testified to his belief that the meeting went well as they did not go into the specifics of respondent's discipline but discussed directives for her and an outlet for her to discuss concerns and request assistance, such as contacting Diaz (a former teacher at Ord Terrace).

67. Also on July 27, 2023, Dr. Nuñez provided respondent's counsel with a Letter of Reprimand for Unprofessional Conduct (Letter of Reprimand) regarding respondent's use of profanity towards Youpa on May 19, 2023. The Letter of Reprimand contained the following directives:

- Comply with all directives from the school and District Administration;
- Conduct yourself in a professional and supportive manner towards students, co-workers, parents, and community members;
- Do not yell or raise your voice when speaking with or to students, parents, and staff;
- Do not use derogatory comments to your students;

- Do not disclose private or confidential information about your students;
- Do not slam items or your hands, or act in an otherwise physically aggressive manner when performing your job duties or when you are on District [p]roperty;
- Follow all posted traffic signs and regulations, as well as District policies and procedures, when driving on or near District property;
- Review and act in accordance with Board Policy 4119.21; and
- Review and act in accordance with CSTP 1.1, 2.1, 2.3, 2.5, 2.6, 6.1, 6.6. 6.7.

Respondent's counsel agreed to review the Letter of Reprimand with respondent, and it is undisputed respondent was aware of the directives contained in the document.

68. For the 2023-2024 school year, respondent was assigned to teach sixth grade at Ord Terrace.

69. On August 22, 2023, respondent engaged in "side conversations," especially when Sampson was speaking, during a staff professional development meeting. Respondent's behavior bothered other staff members who reported the concern to Sampson. At hearing, Dr. Nuñez persuasively testified respondent's actions violated directives in the April 5, 2023, Notice.

70. On September 7, 2023, Sampson documented his concerns in an email to respondent and scheduled a meeting with her to further review the expectations for her compliance with the directives in her April 5, 2023, Notice.

71. On November 1, 2023, Sampson conducted an informal observation of respondent at her classroom during instruction. Sampson observed respondent

directing a student to take his Chromebook and sit in the doorway of the classroom to the outer hall. Sampson did not witness the student being disruptive, but believed respondent had the student sit in the classroom doorway because the student “must have been disruptive.”

72. On November 3, 2023, Sampson and respondent discussed his November 1, 2023, observation via email and she confirmed that the student was being disruptive and that is why she had the student sit in the classroom doorway.

73. Sometime in early November 2023, after Sampson’s observation, he contacted Dr. Nuñez to express his concerns about respondent, including her interaction with the student who she placed in her classroom doorway. Sampson requested support in addressing his concerns regarding respondent’s behavior. Dr. Nuñez informed Sampson that he did not yet want to move forward with the next step in the discipline process as he wanted “stability” for respondent’s students. Dr. Nuñez advised Sampson to meet with respondent and her union representative to discuss Sampson's observations and concerns.

74. On November 13, 2023, during class instruction, Sampson observed a student sitting in a chair in the middle of respondent’s classroom doorway blocking the entrance and creating a safety hazard. Sampson heard a verbal exchange between the student and respondent in which respondent informed the student she did not want him in class and stated, “do I need to send you all the way out because I’m absolutely disgusted.” Later Sampson noted that respondent had submitted various school Google forms during instructional time, which should only be sent during non-instructional time. At hearing, Dr. Nuñez persuasively testified respondent’s actions violated directives in the April 5, 2023, Notice.

75. On November 15, 2023, Sampson convened a meeting with respondent and her union representative to review the concerns from his November 13, 2023, observation.

76. On November 16, 2023, Sampson sent an email to respondent and copied Dr. Nuñez and the teachers' union representative on the email. In the email, Sampson summarized his concerns with respondent and provided her with directives, which included, but were not limited to, refrain from speaking disrespectfully to students and not have students blocking the classroom entrance. Sampson included information on accessing PBIS resources and support if respondent believed she needed behavioral support for a student.

77. Sometime in November or December 2023, as discussed further below (see Factual Findings 85-89), Sperry (another sixth grade teacher) observed respondent talking to students and complaining about other students. Sperry did not share this observation with Sampson until shortly after February 6, 2024.

78. On February 6, 2024, as discussed further below (see Factual Findings 96-98), Sampson was walking on campus when he heard respondent interacting with her students in her classroom during instructional time, which caused him to be concerned about their safety and well-being. Shortly after he left the vicinity of respondent's classroom, Sampson called Dr. Nuñez and relayed his concerns. Dr. Nuñez asked Sampson to meet with respondent later that day so Sampson could share his concerns with her regarding what he had just witnessed. Sampson attempted to meet with respondent, but she refused based on advice of her legal counsel. Later that day, Sampson provided Dr. Nuñez with a Google document that detailed what Sampson heard that day while respondent was instructing her students. At hearing,

Dr. Nuñez persuasively testified that respondent's actions violated directives in the April 5, 2023, Notice.

79. On February 7, 2024, Dr. Nuñez issued respondent a letter placing her on paid administrative leave pending an investigation that she engaged in unprofessional conduct. Included in the letter, was a directive that: "[u]nless you obtain advance permission from me, you are directed not to enter any District facility or property, or use District technology, including the email system, during administrative leave." At hearing, when Dr. Nuñez was asked why he issued the letter, he testified:

It was about the students' experience in [respondent's] classroom and what I saw on [Sampson's] notes, what Mr. Sampson shared with me. So I felt I had been very clear and supportive with [respondent] around what's expected and we were here again. So I felt I needed to look further into investigation and I had to remove her from the setting.

Respondent has not returned to her teaching position since she was placed on leave on February 7, 2024.

80. On February 7, 2024, Sampson delivered Dr. Nuñez's letter to respondent, placing her on administrative leave. After receiving the letter, as discussed further below (see Factual Findings 92-94), respondent went into her classroom and engaged in various activities preparing for administrative leave, including moving student desks, and writing a message for her students on the classroom whiteboard. Students were present in respondent's classroom while she performed some of these activities. The message respondent wrote on the whiteboard to her students included the date, and stated:

6th grade Students of Room 27

I will miss you all very much

I did not leave you by choice. I was forced out. Do your best
[hearts]

Love, Ms. Ehrhardt

P.S. Stay Lit!

81. Within a week of February 7, 2024, Sperry emailed Sampson the information set forth in Factual Finding 77, and Sperry also included his observations of respondent in her classroom after she received notice she was being placed on administrative leave (see Factual Findings 85-89).

82. On February 14, 2024, as discussed further below (see Factual Finding 97), Sampson interviewed the students from respondent's class and took contemporaneous notes during his interviews in a Google document, which was shared with Dr. Nuñez.

83. On April 9, 2024, the District issued the Statement of Charges. Dr. Nuñez assisted with providing the content for the Statement of Charges and the document was prepared by the District's legal counsel.

84. Towards the end of the 2023-2024 school year, after respondent was placed on administrative leave, respondent was contacted by a student to attend the end-of-the-year event (Event) for students and parents at Ord Terrace. The student sent respondent an email on her school email that notified her that there was a

message for her on Clever.⁶ Respondent checked Clever and saw the student had invited her to the Event. As set forth in Factual Finding 79, the letter placing respondent on administrative leave included the directive that, unless permission was granted by Dr. Nuñez, she was not to enter any District facility or property or use any District technology including its email. Neither Dr. Nuñez, nor any other District administrator informed respondent she was authorized to use District technology or to attend the Event. At hearing, respondent testified she was aware she was not authorized to attend the Event and that the student that invited her had no authority to do so. Respondent chose to go to Ord Terrace the day the Event was being held on campus, but she did not enter campus and stayed on the sidewalk adjacent to campus. At hearing, respondent confirmed that at her deposition she stated, "I knew that me going to the field trip [Event] to see my class and showing a visible demonstration of my popularity right in front of [Sampson's] office, I knew it would be like, see, I told you, I told you they love me." Respondent further confirmed at hearing that one of the reasons she went to the Event was to make a statement to Sampson.

The evidence established that respondent willfully violated the directives in the February 7, 2024, letter placing her on administrative leave by accessing District technology including its email and Clever application, and by going to Ord Terrace for the Event. Furthermore, the evidence established respondent had a selfish motive to use an activity for students, the Event, to engage in an act of animus towards Sampson.

⁶ Clever is a computer application used by the District for parents and students to communicate with teachers and other school staff.

2023-2024 SCHOOL YEAR: COMPLAINING ABOUT STUDENTS TO OTHER STUDENTS AND ENGAGING IN MISCONDUCT AFTER BEING PLACED ON LEAVE

Sperry's Testimony

85. Sperry testified at hearing. Sperry is currently employed as a sixth grade elementary school teacher at Ord Terrace where he has taught for approximately 21 years. Sperry is familiar with respondent from working with her at Ord Terrace, including when she taught sixth grade. Sperry's relationship with respondent was "professional," "good," and a "regular working relationship." Sperry described respondent as a coworker, as funny, smart, and energetic, and he has never had a personal problem with her.

86. On February 7, 2024, Sperry learned that respondent was being placed on administrative leave. He went to respondent's classroom right after school sometime around 3:00 to 3:30 pm. to see if she needed assistance taking her personal items to her vehicle as he knew it was her last day. When he arrived in respondent's classroom there were three female students present (at least one of whom was respondent's student). Sperry observed respondent moving students' desks in the classroom while making statements such as, "well, let's just rearrange everybody so they are by their friends," "they can be like this for the rest of the year," "we'll put student [] right next to his pal student []," and "that will be wonderful." Upon seeing respondent moving desks and making statements that seemed sarcastic, Sperry did not display a reaction in front of the students, but he thought to himself, "this doesn't look good" because rearranging the students' desks to place "buddies" next to each other was going to be "pretty tough" on the substitute teacher coming the next day. Sperry did not believe respondent's conduct was professional because she was setting

up the substitute “for a difficult time and kind of sabotaging the setup of the classroom.”

Sperry was so concerned regarding respondent’s conduct that he sent Sampson an email to report his observations and concerns. Sperry was worried about reporting respondent and initially had hoped to remain anonymous. and he only made a report because it “would have created a poor environment for the next teacher” and “I felt it was my responsibility to do that [make the report] as a teacher.”

87. In Sperry’s email to Sampson, as set forth in Factual Finding 77, he also described an incident that occurred in November or December 2023 when Sperry went into respondent’s classroom after school and saw the same female students he saw on February 7, 2024. Respondent was discussing Sampson and discussing multiple students by name. Respondent shared with the students her belief that Sampson had set her up for failure, had given her all the “bad” students that cause trouble, and that her class “was rigged.” Upon hearing this, Sperry tried to make eye contact with respondent to send her the message that she should not be complaining about students in front of other students, and he made a statement such as, “hello, you have students listening.” Respondent responded with something like, “oh, don’t worry about them, they won’t say anything.” These comments made Sperry feel uncomfortable and he believed he had a duty to share this information with Sampson, based on respondent’s actions on February 7, 2024.

88. Under cross-examination, Sperry definitively confirmed his belief that respondent had purposely engaged in a plan to sabotage the incoming substitute teacher for her classroom.

89. Sperry’s testimony was credible, compelling, and persuasive.

2023-2024 Ord Terrace Classroom Composition Process

90. Through the testimony of Sampson, Youpa, and Sperry, the evidence established the process at Ord Terrace for assigning students to classrooms for the following school year. Sampson develops preliminary classroom compositions identified by number and not by teacher, based on data including student behavior and academics. These preliminary classroom compositions are then reviewed by the group of teachers specific to student grade. This process involves a team review of student articulation cards that detail students' reading levels, behavior, math skills, personality, and issues with learning. The team reviewing the articulation cards is comprised of the academic coach, the principal, and all the teachers who taught the students that year (e.g., the review of student classroom compositions for fifth grade would involve all fourth grade teachers). The purpose of the review is to "share the wealth" to ensure no one teacher had more than an equal share of students with various learning challenges and also to separate students that had issues or conflicts with each other. The team is allowed to make any changes that they want in order to ensure the student classroom compositions are balanced. At the end of the meeting, teachers do not know which student classroom composition will be assigned to them, because the principal will make the decision at the very end of the process.

91. The evidence established the process for developing class compositions at Ord Terrace, including respondent's class, was deliberately designed to create equally balanced classes as to various factors including students' behavior. Respondent's assertion that the selection of sixth grade students for her classroom for the 2023-2024 school year was "rigged" or biased against her in any deliberate manner is not supported by the evidence.

Respondent's Testimony

92. Respondent testified that after she received the letter on February 7, 2024, placing her on administrative leave, she went back to her classroom. It was after the end of the instructional school day, but approximately five of her students were in the classroom. Respondent testified that the students, and not her, rearranged the desks of the other students, and she allowed the students to move the desks as she was planning to allow the students to move the desks at the end of that school week. Respondent admitted that she made some of the statements Sperry testified that she made, as set forth in Factual Finding 86, but she denied that she was trying to create a challenging environment for the incoming substitute teacher. Respondent testified to her belief that Sampson "rigged" her class for the 2023-2024 school year, admitted she made this statement in front of students, and confirmed that she "stand[s] by it."

Respondent testified that during the 2023-2024 school year she never made any comments to students complaining about other students. Respondent testified that she had a cordial professional relationship with Sperry. Respondent testified that Sperry was being dishonest when he said that respondent said in front of other students that she had some student "troublemakers" in her class.

93. Under cross-examination, when asked what respondent thought when Sampson gave her the February 7, 2024, letter placing her on administrative leave, she testified that Sampson "was a petty vindictive little man who lied on the reentry meeting and negotiated everything in bad faith." Respondent admitted telling her students in her classroom after she received the letter, "they did it," "they're getting rid of me," and "I gotta get all my stuff." When questioned if she thought it was appropriate to make these statements in front of students, she testified:

Yes, because what they have done to me is create a hostile work environment. I'm not going to be quiet as I'm led to the guillotine. This is outrageous and unfair, and yeah, I'm indignant.

Respondent also testified that she did not believe the message that she left for students on the classroom whiteboard, as set forth in Factual Finding 80, was inappropriate.

94. The portions of respondent's testimony that conflicted with Sperry's testimony lacked credibility.

Ultimate Factual Finding — 2023-2024 School Year: Complaining About Students to Other Students and Engaging in Misconduct After Being Placed on Leave

95. The evidence established respondent complained about students to other students and engaged in misconduct after being placed on leave, which included telling students her class was "rigged," writing an inappropriate message to her students on the classroom whiteboard, and rearranging students' desks to sabotage the incoming substitute teacher.

2023-2024 SCHOOL YEAR: ACTING INAPPROPRIATELY WITH STUDENTS IN CLASSROOM

Sampson's Testimony

96. As set forth in Factual Finding 78, on February 6, 2024, at approximately 1:10 p.m., Sampson testified he was walking by respondent's classroom when he heard

respondent speaking very loudly to her students with a tone of frustration or anger and making statements that concerned him. Respondent was teaching her students math. He stopped and stood approximately three or four feet from the external classroom door and listened, but he did not enter the classroom although he could see into the classroom through a window in the door. Sampson continued his observation for approximately 25 to 30 minutes until 1:30 p.m. when most of the students left the classroom for physical education. He used his smart phone to take notes in "real time." Later, he incorporated his notes into a Google document and took a screenshot of his notes, and shared the screen shot and the Google document with Dr. Nuñez.

Respondent's statements and actions that Sampson believed to be inappropriate include, but are not limited to:

- Speaking to her students in an extremely condescending tone;
- Yelling, "you can do it for homework," "close your mouth [student]," exactly, bye";
- Yelling, "be quiet, be quiet" after Sampson heard silence for approximately one minute and no students were speaking;
- Yelling, "I don't care";
- Yelling, "sit down little boys" and with an even more condescending tone, "sit down little boys," trust me, if you were in the fourth grade right now, you would be little boys," "if you're a little boy, I'm much more forgiving," "you're little boys, so please learn from your mistakes"; and
- Stating, "be quiet" multiple times in a condescending tone.

Sampson persuasively opined respondent did not practice appropriate behavioral interventions to manage her students' behavior and maintain control of her classroom during student instruction.

97. After February 7, 2024, Sampson testified he conducted additional investigation into respondent's interactions with her students. On February 14, 2023, he interviewed respondent's students individually in his office and took contemporaneous notes in a Google document. The document was later shared with Dr. Nuñez. The students reported a variety of statements made by respondent, and made by other students, in respondent's classroom. Some of the statements reported to have been made by respondent were objectively inappropriate. However, Sampson did not observe respondent make these statements and none of the students who Sampson interviewed testified at hearing. In summary, there is no direct evidence regarding these interview statements.

98. Sampson's testimony was credible and persuasive as to what he observed as a percipient witness, including his observation set forth in Factual Finding 74, and the actions he took in conducting his investigation of respondent.

Directing and Supervising Students to Physical Education

99. The Statement of Charges included an allegation that on February 6, 2024, respondent did not properly supervise her students as most of them transitioned from math instruction to physical education. The evidence established that day was a "rainy day" with a different schedule and location for physical education. There was insufficient evidence that respondent failed to properly supervise and direct her students going to physical education that afternoon.

Respondent's Testimony

100. Respondent denied telling her students to shut up and provided explanations and excuses for her inappropriate statements and conduct towards her students during the 2023-2024 school year as set forth in Factual Findings 74 and 96.

101. The portions of respondent's testimony that conflicted with Sampson's testimony lacked credibility.

Ultimate Factual Finding — 2023-2024 School Year: Acting Inappropriately with Students in Classroom

102. The testimony of Sampson was more credible than that of respondent. The evidence established that on November 13, 2023, respondent directed a student to place his chair in the middle of respondent's classroom doorway blocking the entrance and creating a safety hazard, and she inappropriately made a statement referring to her being disgusted regarding a student. The evidence further established that on February 6, 2024, during math instruction, respondent engaged in inappropriate behavior including yelling at students and using a condescending tone, yelling at students repeatedly to be quiet, yelling at a student to close their mouth, yelling "I don't care," and yelling at students calling them "little boys." The evidence also established that on February 6, 2024, respondent did not practice appropriate behavioral interventions to manage her students' behavior and maintain control of her classroom during student instruction. There was insufficient evidence that respondent failed to properly direct and supervise her students that went to physical education that afternoon.

District's Decision to Pursue Respondent's Dismissal

103. At hearing, when Sampson was asked if termination of respondent was appropriate, he testified:

I don't believe that she has the professional judgment to navigate situations where students are either not behaving or not engaging in the kind of conduct that she would like, and I also question her ability to make good decisions in her interactions with adults as well as kids.

When Sampson was asked if he could trust that respondent would maintain her professionalism if she was returned to the classroom, he testified:

She's demonstrated a pattern over time that despite being given guidance about appropriate ways to conduct herself, she's indicating to me that she both is unwilling to abide by those directives as well as she has a pattern of not taking responsibility for her actions and indicating a desire to grow and learn from those mistakes.

104. At hearing, when Dr. Nuñez was asked why the District decided to move forward with dismissal charges against respondent, he testified, "[w]e were concerned with the pattern of unprofessional conduct with [respondent] and the experience students were sharing in the classroom." Dr. Nuñez further testified that respondent's termination is warranted because, "I felt the experience our students were having based on the directives we were providing, I didn't see any improvement."

Respondent's Additional Evidence

105. As set forth in Factual Finding 8, respondent presented no witnesses other than herself, and she did not provide any written character letters. She did provide 95 pages of cards and notes from students (including some that Youpa had students prepare for when respondent returned from administrative leave) with positive statements. Respondent repeatedly testified that she loved her students and that students loved her although she acknowledged that she is not supposed to be friends with students, and she is in fact not friends with her students.

106. Respondent taught in three other school districts prior to her employment with the District. She loves teaching and what she enjoys most about teaching are her students because they are "funny," "it's emotionally fulfilling," "every day is different and I actually can joke around with them," they are "honest and appreciative," and "their compliments mean more than others." Respondent enjoys teaching students with difficult backgrounds and most of her teaching experience has been with this population.

107. Respondent suggested that if she had been transferred to another school site for the 2023-2024 school year that she would not have gotten in trouble with the District administration.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. The District bears the burden of proving cause to dismiss respondent by a preponderance of the evidence. (*Parker v. City of Fountain Valley* (1981) 127

Cal.App.3d 99, 113; *Gardner v. Com. on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) The term "preponderance of the evidence" means "more likely than not" (*Sandoval v. Bank of Am.* (2002) 94 Cal.App.4th 1378, 1387-1388.)

Applicable Law

2. A permanent certificated District employee may be dismissed for cause only after a dismissal hearing. (§§ 44932, 44934, and 44944.) Under section 44944, subdivision (c), the dismissal hearing must be conducted by a three-member Commission on Professional Competence. Two members of the Commission must be non-District employees, one chosen by the respondent and one by the District, and the third member of the Commission must be an ALJ from OAH.

3. When a school district board recommends dismissal for cause, the Commission may only vote for or against dismissal. The Commission may not dispose of a charge of dismissal by imposing probation or an alternative sanction. (§ 44944, subds. (d)(1) & (3).) The Commission's decision "shall not be based on nonsubstantive procedural errors committed by the school district or governing board of the school district unless the errors are prejudicial errors." (§ 44944, subd. (d)(2).)

Cause for Dismissal

IMMORAL CONDUCT

4. A school district may dismiss a permanent certificated employee for immoral conduct. (§ 44932, subd. (a)(1).) Immoral conduct is defined as conduct that:

is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or

indicative of corruption, indecency, depravity, dissoluteness; or as wil[ly]ful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

(*Board. of Ed. of San Francisco Unified Sch. Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811; see also *San Diego Unified Sch. Dist. v. Com. on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

5. Moreover, the definition of immoral conduct "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed responsibilities and limitations on freedom of action which do not exist in regard to other callings." (*San Diego Unified Sch. Dist., supra*, 194 Cal.App.4th at p. 1466.) A teacher is often described as "an exemplar, whose words and actions are likely to be followed by the children coming under [the teacher's] care and protection." (*Palo Verde Unified Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 970.) A teacher's conduct is immoral "when it negatively affects the school community in a way that demonstrates the teacher is 'unfit to teach.'" (*Crawford v. Com. on Professional Competence of Jurupa Unified Sch. Dist.* (2020) 53 Cal.App.5th 327, 337.)

6. In this matter, respondent in her classroom during student instruction: slammed her hand on her desk and on her students' desks, told a student to shut up, yelled at her class in anger, referred to a student having ADHD, referred to a student's special education status and stated the student should be adopted, stated she did not want a student in her class and the student should be placed in a special education classroom, yelled at her class in a condescending tone, yelled "I don't care," and called sixth grade students "little boys." (Factual Findings 51, 102) Respondent also

complained about students to other students, told students her class was “rigged,” attempted to sabotage an incoming substitute teacher, and used profanity in reference to students in an area of the elementary school open to parents and students. (Factual Findings 64, 95.)

7. Respondent’s conduct shows moral indifference to the opinions of respectable members of the community, hostility to the welfare of the general public, and an inconsiderate attitude toward good order and the public welfare. Accordingly, the District established cause to dismiss respondent for immoral conduct under section 44932, subdivision (a)(1).

UNPROFESSIONAL CONDUCT

8. A school district may dismiss a permanent certificated employee for unprofessional conduct. (§ 44932, subd. (a)(2).) The term “unprofessional conduct” is not defined by the Education Code. Nevertheless, the California Supreme Court has held the term may be construed consistent with common usage as conduct that “violates the rules or ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing.” (*Bd. of Education of the City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 553.)

9. Respondent’s conduct set forth in Legal Conclusion 6 violates the ethical code of the teaching profession and is unbecoming of a teacher. A teacher is expected to possess and exercise good judgment and self-control and accept responsibility for their actions even when dealing with difficult students and challenging situations. Accordingly, the District established cause to dismiss respondent for unprofessional conduct under section 44932, subdivision (a)(2).

EVIDENT UNFITNESS FOR SERVICE

10. A school district may dismiss a permanent certificated employee for "evident unfitness for service." (§ 44932, subd. (a)(6).) The term "evident unfitness for service," means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified Sch. Dist. v. Com. on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) The term "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

11. In this matter, respondent continued to engage in immoral and unprofessional misconduct despite multiple warnings, the application of progressive discipline, and access to supports and assistance. Moreover, respondent repeatedly refused to accept responsibility for her actions and blamed others. Respondent's act of sabotage against an incoming substitute teacher and her appearing at the Event as a potentially disruptive element for the purposing of making a statement to Sampson are indicative of her inability to self-regulate and exercise self-control. Respondent's sustained pattern of misconduct reasonably suggests a temperamental defect of character rendering her unable or unwilling to conform her conduct to professional expectations. Respondent's continued inability to self-regulate and exercise self-control jeopardizes the emotional well-being of District students, staff, and parents, and renders her unsuitable for the profession of teaching. Accordingly, the District established cause to dismiss respondent for evident unfitness for service under section 44932, subdivision (a)(6).

Propriety of Dismissal

12. Even when cause for dismissal exists, the District must also demonstrate dismissal is appropriate because there is a factual nexus between respondent's misconduct and her unfitness to teach. (*Morrison v. State Bd. of Education* (1969) 1 Cal.3d 214, 229-230.) In *Morrison*, the California Supreme Court provided a list of factors for assessing a person's fitness to teach. The inquiry includes: (1) the likelihood the conduct may have adversely affected others and the degree of such adversity anticipated; (2) the proximity or remoteness in time of the conduct; (3) the type of certification held by the party involved; (4) the extenuating or aggravating circumstances, if any, surrounding the conduct; (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (6) the likelihood of the recurrence of the questioned conduct; and (7) the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers. (*Ibid.*)

13. "The [*Morrison*] factors are not rules, but broad classes of issues to be considered to assist in determining whether to impose discipline. Only the relevant factors need to be analyzed." (*Ricasa v. Office of Admin. Hearings* (2018) 31 Cal.App.5th 262, 285.) The factors may apply to all charges in the aggregate, considering the totality of offensive conduct. (*Woodland Joint Unified Sch. Dist., supra*, 2 Cal.App.4th at pp. 1456-1457 ["When a camel's back is broken we need not weigh each straw in its load to see which one could have done the deed."].)

LIKELIHOOD OF ADVERSE IMPACT AND DEGREE OF ADVERSITY

14. Respondent's conduct had a significant adverse effect on students and staff. Students P.V. and J.E.C. testified to the adverse impact of respondent's

inappropriate conduct during instruction. P.V. testified respondent's conduct was "loud and scary" and "not okay" and J.E.C. testified respondent's conduct made her feel "to not say anything to her because I'm afraid she's going to tell the whole class" and made her "uncomfortable." Youpa testified how upset she was when respondent used profanity in reference to students in an area of the school open to students and parents. Sperry testified he was so upset by respondent's conduct to sabotage an incoming substitute teacher that he felt a responsibility as a teacher to report the conduct to Sampson, even though he wanted to remain anonymous.

PROXIMITY OR REMOTENESS IN TIME

15. Respondent's misconduct occurred over the previous two school years, 2022-2023 and 2023-2024, including February 7, 2024, the day she was placed on administrative leave. As such, her misconduct is recent.

TYPE OF CERTIFICATION HELD

16. Respondent holds a multiple subject credential and teaches elementary students. Elementary students are particularly vulnerable as they are young with impressionable minds and are easily influenced by a teacher role model.

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

17. While respondent made excuses for and tried to justify her misconduct and tried to blame others for her misconduct, the record does not contain credible or persuasive evidence of extenuating circumstances for her incidents of misconduct. Respondent may well have had some students with challenging behaviors, but she was offered support and assistance to address the needs of her students. As discussed in Legal Conclusion 9, a teacher is expected to possess and exercise good judgment and

self-control and accept responsibility for their actions even when dealing with difficult students and challenging situations.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

18. Respondent argues "there is absolutely no evidence that [respondent] was motivated by anything other than the best interests of the students or the school." Respondent is incorrect. The evidence established many examples of respondent acting in her own selfish interests at the cost of the students and staff at Ord Terrace, which include, but are not limited to: respondent's use of profanity in reference to students in the staff parking lot, referring to a student's parent as "white trash," and showing up at the Event for the purpose of engaging in an act of animus towards Sampson. Respondent's repeated claims that she loves her students and her students love her ring hollow. Respondent's conduct was blameworthy, not praiseworthy.

LIKELIHOOD OF RECURRENCE

19. Respondent accepted very little responsibility for her misconduct, minimized her misconduct, or flat-out denied her misconduct. Because she has repeatedly failed to accept responsibility, the likelihood of recurrence is high.

ADVERSE IMPACT OR CHILLING EFFECT UPON CONSTITUTIONAL RIGHTS

20. There is no evidence that disciplinary action against respondent may inflict an adverse or chilling effect upon the constitutional rights of respondent or other certificated staff.

CONCLUSION

21. After considering the *Morrison* factors, respondent's conduct in the aggregate indicates a factual nexus between her conduct and unfitness to teach.

Disposition

22. The Commission on Professional Competence concludes that cause exists to dismiss respondent based on immoral conduct, unprofessional conduct, and evident unfitness for service. The Commission reached this decision on a unanimous vote. Each ground for dismissal provides a separate and independent basis for respondent's dismissal.

ORDER

Respondent Karen Ehrhardt is hereby dismissed as a permanent certificated employee of the Monterey Peninsula Unified School District.

DATE: 01/13/2025



Karen Schuett (Jan 13, 2025 18:26 PST)

KAREN SCHUETT

Commission Member

DATE: 01/14/2025



Renee Golder (Jan 14, 2025 09:24 PST)

RENEE GOLDER

Commission Member

DATE: 01/14/2025



CARL D. CORBIN

Commission Chair

Administrative Law Judge

Office of Administrative Hearings